

Neeraj Chandel v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 30 May 2023 · 2023:AHC-LKO:38678-DB · Writ - C No. 4360 of 2023 · **Recovery citation quashed; final assessment left open.**

HEADNOTE

A recovery citation issued without a final assessment order and without a hearing under paragraph 6.8 of the Electricity Supply Code, 2005, was quashed. The petitioner may reply to the provisional assessment within seven days; respondent no. 2 may then pass a final assessment in accordance with law after considering those objections.

FACTUAL SUMMARY

Neeraj Chandel challenged, before the Lucknow Bench, a recovery citation dated 31 March 2023 issued by opposite party no. 4 for the electricity department. He said the citation had been issued without a final assessment order and without a hearing under paragraph 6.8 of the Electricity Supply Code, 2005. Counsel for respondent nos. 2 and 3 accepted that no final assessment had been passed. A copy of the provisional assessment was given to his counsel in Court.

REUSABLE CONSTRUCTIONS

1. A recovery citation issued before any final assessment order, and without the hearing under paragraph 6.8 of the Electricity Supply Code, 2005, is liable to be quashed. ¶ 1
2. After such a citation is quashed, the consumer must be allowed to object to the provisional assessment, and only then may the licensee pass a final assessment in accordance with law. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Recovery citation before final assessment

HOLDING

The recovery citation dated 31.03.2023, issued without a final assessment order and without an opportunity of hearing under paragraph 6.8 of the Electricity Supply Code, 2005, is quashed. The petitioner may submit a reply to the provisional assessment within seven days. Respondent no. 2 may thereafter pass a final assessment in accordance with law after considering those objections, and proceed further only if the occasion arises. ¶ 1

PRINCIPLE TAGS

para-6.8-non-compliance-vitiates-assessment-and-recovery Counsel for the licensee accepted that the recovery citation had issued without a final assessment. The Court quashed that citation for want of the paragraph 6.8 hearing and a final assessment order. ¶ 1

provisional-assessment-hearing-6.8b The provisional assessment was supplied in Court, and the petitioner was allowed seven days to reply before any final assessment could be passed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PROVISIONAL ASSESSMENT IS SUSTAINABLE, AND WHAT FINAL ASSESSMENT IF ANY SHOULD BE MADE.

Liberty was reserved to respondent no. 2 to pass a final assessment after considering the petitioner's objections. ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.